

CASE SUMMARY

State v. Shehzad & Anr.

SC No. 897/2023 | FIR No. 728/2022, PS Jafrabad | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	15 January 2026 (date of inspection / offence: 3 June 2022)
PARTIES	State (BSES Yamuna Power Ltd.) v. (1) Shehzad S/o Jane Alam; (2) Shaziya W/o Shehzad, both R/o H. No. E-11, Khasra No. 01/148, 2nd Floor, Gali No. 2, Chauhan Bangar, Delhi
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Both Shehzad and Shaziya convicted under Section 135, Electricity Act, 2003. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Shehzad and his wife Shaziya dishonestly abstracted electricity at their unmetered second-floor premises through a two-core black wire tapped — by puncturing — into the service cable of BSES YPL Pole No. YVR-Z-724, so as to attract the offence of theft of electricity under Section 135(1)(a) of the Electricity Act, 2003; and whether, once the prosecution proved the unauthorised means of abstraction, they discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 3 June 2022 at about 10.15 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. Vipin Kumar Gautam (DGM) inspected the second-floor residential premises at H. No. E-11, Khasra No. 01/148, Kalyanwali Gali No. 2, Chauhan Bangar, Delhi. No electricity meter was installed for the inspected floor — the five-floor building had meters for its other floors alone — and supply was being drawn through a two-core black wire connected from the yellow service cable of Pole No. YVR-Z-724 by puncturing that cable and running the wire up to the second floor. Accused Shehzad was present at the spot; the connected load was 4.022 KW, used for domestic purposes. Sh. Sandeep Verma videographed the proceedings and furnished a Section 65B certificate; an Inspection Report, Load Report and Seizure Memo were prepared at the spot. The company assessed a theft demand of Rs. 62,109/-, which went unpaid, and on its Authorised Officer's complaint FIR No. 728/2022 was registered at PS Jafrabad.

Notice under Section 251 Cr.P.C. was given on 12 January 2024; both accused pleaded not guilty. The prosecution examined three witnesses: PW-1 Sandeep Verma (videographer; proved the CD Ex.PW1/A, a Section 65B certificate Ex.PW1/B and six photographs); PW-2 Vipin Kumar Gautam (DGM and team head; proved the inspection report, load report, seizure memo, theft bill and complaint, and the seized wire Ex.P1); and PW-3 HC Gulab Singh (IO; proved the endorsement, FIR, site plan, the Section 41A and Section 91 Cr.P.C. notices served on both accused, the interrogation reports, Shaziya's reply to the Section 91 notice, Aadhaar cards, the ownership documents of the premises, and the Pabandinamas). Under Section 313 Cr.P.C. both accused denied everything and pleaded false implication; neither led any defence evidence.

REASONING OF THE COURT

HEADNOTE

Where whole floors of a building run with no meter and a wire is tapped, by puncturing, into the licensee's pole-mounted service cable, the direct-theft offence under Section 135(1)(a) is made out; spouses jointly occupying and drawing that unauthorised supply are each liable as consumers and convictable under Section 135 without recourse to the abetment provision. The compulsory presumption in the third proviso convicts both where neither leads evidence of a lawful, metered source.

Section 135(1)(a) was engaged by the punctured service-cable tap. The Court set out the ingredients of Section 135(1) — reproducing, for completeness, also the cognate meter-interference offence in Section 138 — but held only clause (a) of Section 135(1) applicable: a dishonest tap on the licensee's service cable, importing the Section 24 IPC meaning of “dishonestly.” On proof of that artificial means the third proviso's presumption of dishonest use arose.

Both spouses were properly convicted as principals, not merely as abettors. Shehzad was present at the inspection; the premises were the couple's joint residence; Shaziya herself answered the Section 91 Cr.P.C. notice. Both having been charged and tried under Section 135 as persons drawing and using the abstracted supply, the Court convicted each as a principal offender rather than routing the wife through Section 150.

The inspection stood proved through unshaken, 65B-supported evidence. PW-1 and PW-2 were consistent and uncontradicted on the absence of any meter for the inspected floor, the punctured-cable tap and the seizure; the CD (proved with a Section 65B certificate) was played in court and neither the accused's nor the premises' identity was disputed. That the building carried authorised meters for its other floors underscored the absence of one for the inspected second floor. The suggestions that the case property was planted or the documents fabricated were denied and left unsubstantiated.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested in cross-examination.

The presumption was compulsory, and neither spouse rebutted it. Following *Neeraj Dutt* (compulsory “shall presume”) and *Hiten P. Dalal* (prudent-man standard), the Court noted that neither accused led defence evidence, explained the source running the appliances, or claimed a Genset. The natural rebuttal — paid electricity bills, per *Mukesh Rastogi* and the Section 106 onus — was never attempted, and the presumption stood unrebutted against both.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a wire tapped, by puncturing, into the licensee’s pole-mounted service cable as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 62,109/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available for the inspected premises and that Shehzad and Shaziya were found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, they failed to rebut the statutory presumption. **Shehzad and Shaziya are accordingly convicted under Section 135 of the Electricity Act, 2003**, and are to be heard on the quantum of sentence.

SIGNIFICANCE

A joint spousal conviction turning on a punctured service cable in a multi-floor building. Five propositions stand out:

- **Both occupants can be convicted as principals.** Where spouses jointly occupy unmetered premises fed by one illegal tap, each is a “consumer” drawing the supply and each is convicted under Section 135 — there is no need to route the second occupant through the abetment provision.
- **Puncturing a pole-mounted service cable is a clause (a) tap.** Piercing the licensee’s service cable at the pole to bleed supply is itself the actionable connection under Section 135(1)(a).
- **Meters for other floors do not help.** That the building carried authorised meters for its other floors underscored, rather than excused, the absence of any meter for the inspected floor.

- **A filed 65B certificate forecloses the videography challenge.** With Ex.PW1/B on record, the planting and fabrication suggestions had nothing to bite on.
- **The reverse-onus presumption binds every occupant.** Neither spouse produced paid bills or any lawful-source evidence; the compulsory third-proviso presumption convicted both.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court's own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	"Shall presume" denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.